

HOUSE BILL 1704

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 7; Title 38; Title 39; Title 40 and Title 41,
relative to immigration.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 17, Part 1, is amended by adding the following new section:

(a) A person commits an offense who:

(1) Is an alien against whom a valid final order of removal is outstanding by reason of being a member of any of the classes described in 8 U.S.C. § 1227(a); and

(2) Intentionally fails or refuses to depart from this state within a period of ninety (90) days from the date of the final order of removal under administrative processes, or if judicial review is had, then from the date of the final order of the court.

(b) A violation of subsection (a) is a Class A misdemeanor.

(c) If the person has not exhausted all available paths under federal law for challenging the final order of removal, then the court shall grant a stay of the criminal proceedings until the person has exhausted all available paths under federal law for challenging the final order of removal.

SECTION 2. Tennessee Code Annotated, Title 39, Chapter 17, Part 1, is amended by adding the following new section:

(a) A person commits an offense who:

(1) Is an alien that has been denied admission, excluded, deported, or removed from the United States or has departed the United States while an order of exclusion, deportation, or removal is outstanding; and

(2) Thereafter intentionally enters or attempts to enter this state, unless:

(A) Prior to the person's reembarkation at a place outside the United States or the person's application for admission from foreign contiguous territory, the United States attorney general has expressly consented to such person's reapplying for admission; or

(B) With respect to a person previously denied admission and removed, unless such person shall establish that the person was not required to obtain such advance consent under federal law.

(b) A violation of subsection (a) is a Class A misdemeanor.

(c) If the person has not exhausted all available paths under federal law for challenging the federal action listed in subdivision (a)(1), then the court shall grant a stay of the criminal proceedings until the person has exhausted all available paths under federal law for challenging the action.

SECTION 3.

(a)

(1) Section 2 of this act takes effect on the thirtieth day following the occurrence of either of the following circumstances, the public welfare requiring it:

(A) The issuance of the judgment in any decision of the United States Supreme Court overruling, in whole or in part, *Arizona v. United States*, 567 U.S. 387 (2012), thereby authorizing states to determine that a person is unlawfully present in this state; or

(B) Adoption of a federal statutory provision that, in whole or in part, removes the preemption of states' ability to determine that a person is unlawfully present in this state.

(2) The attorney general and reporter shall notify in writing the Tennessee code commission of the occurrence of either of the circumstances in subdivision (a)(1) and what date is the thirtieth day following such occurrence.

(b) All other sections of this act take effect July 1, 2026, the public welfare requiring it.